

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF Bronx

Index No.: _____
Date Purchased: _____

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RAYVON JACKSON, DONAVAN HINDS and RICKEY SANDS,

SUMMONS

Plaintiff designates Bronx County as the place of trial.

Plaintiff,

The basis of venue is:

vs.

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, THE POLICE DEPARTMENT OF THE CITY OF NEW YORK, POLICE OFFICER "A. RAMIREZ" and POLICE OFFICERS "JOHN DOES of the 43rd PRECINCT,

Plaintiff resides at:
595 Calhoun Avenue
Bronx, New York 10465

Defendants.

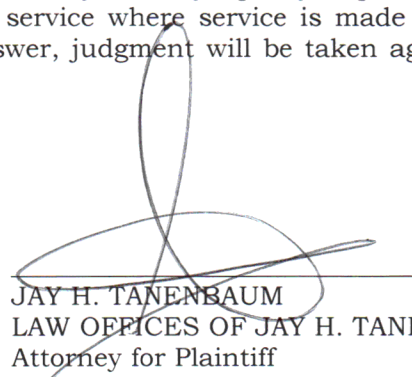
County of Bronx

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 4, 2022


JAY H. TANENBAUM
LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street - 5F
New York, New York 10005
(212) 422-1765
File No.: 555-21J-0002

TO: The City of New York
100 Church Street
New York, New York 10007

New York City Police Department
100 Church Street
New York, New York 10007

New York City Police Department - 43rd Precinct
900 Fteley Avenue
Bronx, New York 10473

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF Bronx

-----X
RAYVON JACKSON, DONAVAN HINDS and RICKEY
SANDS,

Plaintiff,

VERIFIED COMPLAINT

vs.

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, THE POLICE DEPARTMENT OF THE CITY
OF NEW YORK, POLICE OFFICER "A. RAMIREZ" and
POLICE OFFICERS "JOHN DOES of the 43rd PRECINCT,

Defendants.

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Plaintiffs, by their attorney, **Law Offices of Jay H. Tanenbaum**, complaining of the
Defendants, respectfully alleges, upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States of America

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988, AND THE FOURTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION.

3. This Court has jurisdiction over each federal claim pursuant to concurrent jurisdiction.

VENUE

4. Venue is properly laid in the Supreme Court of the State of New York, in that the events giving rise to this claim occurred in Bronx County in the State of New York.

JURY DEMAND

5. Plaintiffs respectfully demand a trial by jury of all issues in this matter.

PARTIES

6. Plaintiffs, were, and has been, at all relevant times, a resident of Bronx County, City and State of New York.

7. Defendant, The City of New York, was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, New York City Police Department, was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

9. Defendant, The City of New York, maintains the New York City Police Department, a duly authorized public authority and/or police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

10. That at all times hereinafter mentioned, defendants, Police Officer A. Ramirez, were and still is employed with defendant, New York City Police Department.

11. That at all times hereinafter mentioned, defendants, Police Officer A. Ramirez, was acting within the scope and course of his employment with the Defendants, The City of New York and New York City Police Department.

12. That at all times hereinafter mentioned, defendants, Police Officers John Does, were and still is employed with defendant, New York City Police Department.

13. That at all times hereinafter mentioned, defendants, Police Officers John Does, was acting within the scope and course of his employment with the Defendants, The City of New York and New York City Police Department.

14. That prior hereto on November 22, 2021, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment

thereof was duly served on the claimant's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

15. A hearing was held on January 22, 2022, within the time period pursuant to Municipal Law 50-h pursuant to the demand of the defendant, The City of New York.

16. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

FACTS

17. On October 15, 2021 at approximately 04:00 a.m., plaintiffs were lawfully in a motor vehicle proceeding over and along White Plains Road and Metcalf Avenue, in the County of Bronx, City and State of New York.

18. At that time, Defendants, Police Officer A. Ramirez arrived at the location on duty.

19. At that time, Defendants, Police Officers John Doe 1-5 arrived at the location on duty.

20. At said time and place, Plaintiffs' motor vehicle was pulled over by the individual defendants.

21. No search warrant for the motor vehicle was shown to the Plaintiffs.

22. Plaintiffs were not engaged in any unlawful or suspicious activity.

23. Nonetheless Plaintiff, RAYVON JACKSON, was detained and humiliated by Police Officers John Does without any legal justification or excuse.

24. Nonetheless Plaintiff, DONAVAN HINDS, was detained and humiliated by Police Officers John Does without any legal justification or excuse.

25. Nonetheless Plaintiff, RICKEY SANDS, was detained and humiliated by Police Officers John Does without any legal justification or excuse.

26. At no time on October 15, 2021, did Plaintiff, RAYVON JACKSON, commit or violation of the law.

27. At no time on October 15, 2021, did Plaintiff, DONAVAN HINDS, commit or violation of the law.

28. At no time on October 15, 2021, did Plaintiff, RICKEY SANDS, commit or violation of the law.

29. At no time on October 15, 2021, did defendants possess probable cause to stop the motor vehicle Infant-Plaintiffs were passengers.

30. At no time on October 15, 2021, did Defendants possess information that would lead a reasonable officer to believe probable cause existed to stop the motor vehicle Infant-Plaintiffs were passengers.

31. As a result of the foregoing, Plaintiff, RAYVON JACKSON, sustained emotional and psychological distress and his constitutional rights.

32. As a result of the foregoing, Plaintiff, DONAVAN HINDS, sustained emotional and psychological distress and his constitutional rights.

33. As a result of the foregoing, Plaintiff, RICKEY SANDS, sustained emotional and psychological distress and his constitutional rights.

34. All of the aforementioned acts deprived Plaintiff, RAYVON JACKSON, of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to be Constitution of the United States of America, and were therefore in violation of 42 U.S.C. Section 1983.

35. All of the aforementioned acts deprived Plaintiff, DONAVAN HINDS, of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to be Constitution of the United States of America, and were therefore in violation of 42 U.S.C. Section 1983.

36. All of the aforementioned acts deprived Plaintiff, RICKEY SANDS, of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and

Fourteenth Amendments to be Constitution of the United States of America, and were therefore in violation of 42 U.S.C. Section 1983.

37. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.

38. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of Defendants, The City of New York and New York City Police Department, all under the supervision of ranking officers of said department.

39. Defendants, collectively and individually, engaged in conduct which constituted custom, usage, practice, procedure or rule of respective municipality/authority, which is forbidden by the Constitution of the United States.

**FIRST CLAIM FOR RELIEF AGAINST INDIVIDUALLY NAMED DEFENDANTS FOR
FALSE ARREST AND FALSE IMPRISONMENT UNDER FEDERAL LAW, PURSUANT
TO 42 U.S.C. §1983.**

40. Plaintiffs repeat, reiterate and reallege each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

41. As a result of the Defendants' conduct, Plaintiff, RAYVON JACKSON, was subjected to illegal, improper search, and detained without any probable cause, privilege or consent.

42. As a result of the Defendants' conduct, Plaintiff, DONAVAN HINDS, was subjected to illegal, improper search, and detained without any probable cause, privilege or consent.

43. As a result of the Defendants' conduct, Plaintiff, RICKEY SANDS, was subjected to illegal, improper search, and detained without any probable cause, privilege or consent.

44. As a result of the foregoing, Plaintiff, RAYVON JACKSON's liberty was restricted, he was put in fear of his safety and he was falsely detained and searched without probable cause.

45. As a result of the foregoing, Plaintiff, DONAVAN HINDS's liberty was restricted, she was put in fear of her safety and she was falsely detained and searched without probable cause.

46. As a result of the foregoing, Plaintiff, RICKEY SANDS' liberty was restricted, she was put in fear of her safety and she was falsely detained and searched without probable cause.

SECOND CLAIM FOR RELIEF FOR MUNICIPAL LIABILITY UNDER 42 U.S.C §1983

47. Plaintiffs repeat, reiterate and reallege each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

48. Defendants interrogated and searched the Plaintiff, RAYVON JACKSON, of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search and interrogation would jeopardize Plaintiff's liberty, well-being, safety and violate his constitutional rights.

49. Defendants interrogated and searched the Plaintiff, DONAVAN HINDS, in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search and interrogation would jeopardize Plaintiff's liberty, well-being, safety and violate her constitutional rights.

50. Defendants interrogated and searched the Plaintiff, RICKEY SANDS, in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search and interrogation would jeopardize Plaintiff's liberty, well-being, safety and violate her constitutional rights.

51. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

52. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures and rules of the defendants, The City of New York and New York City Police Department, all under the supervision of ranking officers of said department.

53. The foregoing customs, policies, usages, practices and procedures and rules of defendants, The City of New York and New York City Police Department, were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

54. Defendant, The City of New York, has grossly failed and train and adequately supervise its police officers in the fundamental of law of interrogation and search where an individual, especially as here, has not committed a crime.

55. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiffs' rights.

56. That as a result of the foregoing, Plaintiff, RAYVON JACKSON, was caused to sustain serious injuries and to have suffered pain, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and, as a further result, Plaintiff was and will continue to be rendered unable to perform Plaintiff's normal activities and duties and has sustained a resultant loss therefrom.

57. That as a result of the foregoing, Plaintiff, DONAVAN HINDS, was caused to sustain serious injuries and to have suffered pain, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and, as a further result, Plaintiff was and will continue to be rendered

unable to perform Plaintiff's normal activities and duties and has sustained a resultant loss therefrom.

58. That as a result of the foregoing, Plaintiff, RICKEY SANDS, was caused to sustain serious injuries and to have suffered pain, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Infant-Plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and, as a further result, Infant-Plaintiff was and will continue to be rendered unable to perform Infant-Plaintiff's normal activities and duties and has sustained a resultant loss therefrom.

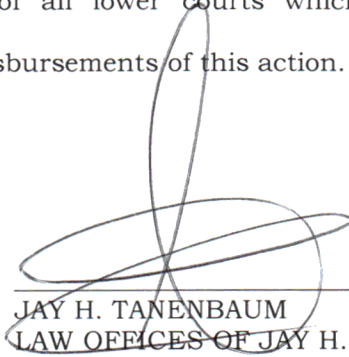
59. That as a result of the foregoing, Plaintiff, RAYVON JACKSON, was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

60. That as a result of the foregoing, Plaintiff, DONAVAN HINDS, was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

61. That as a result of the foregoing, Plaintiff, RICKEY SANDS, was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York,
March 4, 2022



JAY H. TANENBAUM
LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street – Suite 5F
New York, New York 10005
(212) 422-1765

ATTORNEY'S VERIFICATION

The undersigned, an attorney, admitted to practice in the Courts of the State of New York, shows:

That deponent is the attorney of record for the plaintiff(s) in the within action; that deponent has read the foregoing complaint bill of particulars, and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes that to be true. Deponent further says that the reason this verification is made by deponent and not by plaintiff(s) is that plaintiff(s) reside(s) in a county other than in which deponent maintains his offices.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which he has made or has caused to be made concerning the subject matter of this action, and statements of parties and/or witnesses made herein.

The undersigned affirms that the foregoing statements are under the penalties of perjury:

Dated: New York, N.Y.

Sgd./

JAY H. TANENBAUM

INDIVIDUAL VERIFICATION

STATE OF NEW YORK, COUNTY OF New York)SS:

Donovan Hinds

Being duly sworn, deposes and says:

That deponent is one the plaintiff(s) in the within action; that deponent has read the foregoing complaint bill of particulars, and knows the contents thereof; that the same is true except as to those matters therein stated to be alleged upon information and belief, and as to those matters, deponent believes it to be true.

Sgd./

Donovan Hinds

Sworn to before me this

4th day of March, 2022

Eliette A. Alvarez

ELIETTE A. ALVAREZ
Notary Public, State of New York
No. 01AL4726327
Qualified in Richmond County
Commission Expires November 30, 20 22

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RAYVON JACKSON, DONAVAN HINDS and RICKEY SANDS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, THE POLICE
DEPARTMENT OF THE CITY OF NEW YORK, POLICE OFFICER "A. RAMIREZ" and
POLICE OFFICERS "JOHN DOES of the 43rd PRECINCT,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

TO:

LAW OFFICES OF JAY H. TANENBAUM

Attorney for Plaintiff

14 Wall Street - Suite 5F

New York, New York 10005

Tel No.: (212) 422-1765

Fax No.: (212) 425-7492

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of New York State, certified that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: Friday, March 04, 2022

Signature

Print Signors Name LAW OFFICES OF JAY H. TANENBAUM